



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00354 / Lot 1, Block 1, Pat Griffin Park Second Filing Zone Change
Date: November 14, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/14/2022
- Public Services Committee 11/22/2022
- Second reading 11/28/2022
- Public Services Committee 12/6/2022
- Third and final reading 12/12/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their November 7, 2022 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM P PUBLIC TO CB COMMUNITY BUSINESS FOR LAND LOCATED SOUTH OF MISSILE DRIVE, EAST OF I-25.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on November 7, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Pat Griffin Park, Second Filing, City of Cheyenne, Laramie County, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION NOVEMBER 7, 2022 STAFF REPORT

FILE: UDC-22-00354: Car Dealership – Zoning Map Amendment

REQUEST: A request to rezone approximately 1.5 acres of land from P Public to CB Community Business

LOCATION: South of the I-25 and Missile Drive interchange

APPLICANT: Gene MacDonald

AGENT: Shane Hansen

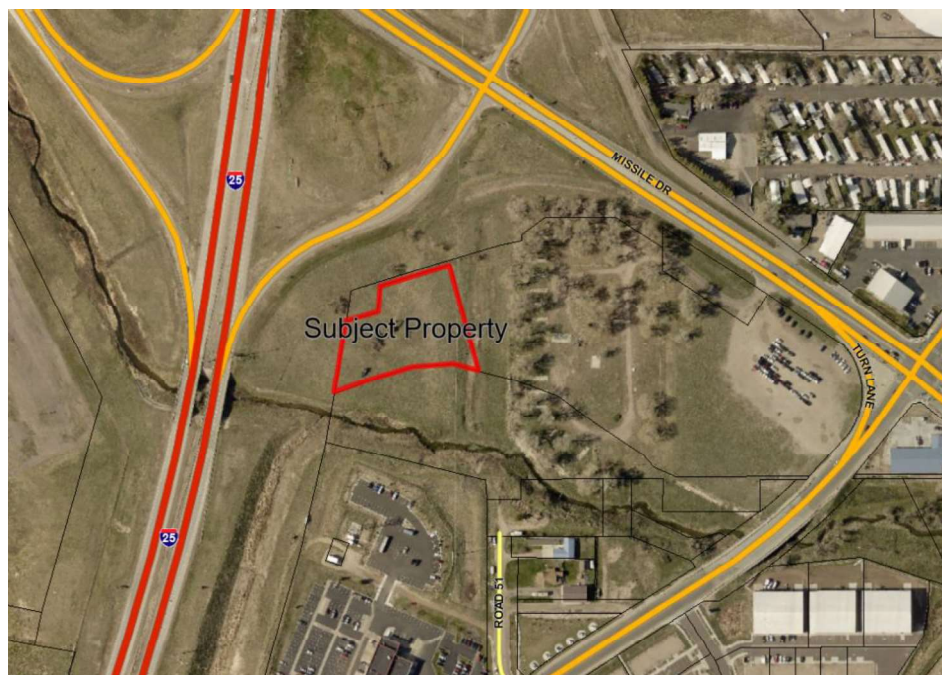
OWNER: Moreland Properties LLC

ZONING: P Public

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: To allow non-governmental development

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 1, Pat Griffin Park Second Filing to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from P Public to CB Community Business for 1.5 acres of land.

The proposed CB zoning allows variety of commercial uses in an automobile-centric format.

The land was once under City ownership and as part of the negotiations to transfer the land out of City ownership, it was understood that the new owner would be required to do a zone change out of the P Public zone to develop the property. P Public zoning cannot develop under private ownership.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	P Public	Vacant
North	Mixed-use Commercial, unassigned	CB Community Business	Vacant, Interchange
South	Mixed-use Commercial	P Public	Vacant (creek)
East	Mixed-use Commercial	CB	Vacant
West	Public-Federal	SS	Vacant (EUL)

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

The location associated with a freeway interchange would encourage the development of automobile-oriented commercial uses in this area. PlanCheyenne encourages the flexibility to be responsive to market demands.

The Future Land Use Designation for this property and the surrounding area is Mixed-use Commercial. According to comprehensive plan the optimal City zone for the subject property's future land use designation is MUB Mixed-use Business Emphasis, although a variety of commercial, residential, and mixed-use zones could also be appropriate based on the context of the site. The proposed zoning is CB, a commercial-emphasis zone. Mixed-use Commercial areas are encouraged to develop with primarily commercial uses, but public, residential, and other employment uses are also encouraged.

This property is also near a Regional Activity Center on the Future Land Use Map. Activity Centers are intended for a mix of commercial and residential uses with access to regional transportation. Regional-serving commercial uses is an expected component of an Activity Center. The proposed CB zone is considered one of the optimal zones for activity centers of this type.

The policies of PlanCheyenne are supportive of this proposed zone change. The future land use plan encourages more commercial-style zoning at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The only adjacent privately-owned property is zoned CB. Zoning the subject property CB would allow the properties to be consolidated into one development. The proposed zoning is also compatible with the future land use designation of Mixed-use Commercial and an activity center.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The P zone is only eligible to develop with governmental uses. As the property is owned by a private entity, a non-P zone designation is required to allow the property to develop. CB zoning allows a variety of commercial uses (and limited residential) and is expected to develop with an automobile-oriented development pattern.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Due to the constraints presented by I-25 and the creek bed, it is unlikely this property can meet the block standards of Article 4 for any proposed development. Exceptions for such features are written into article four. The property is adjacent to an open area which may include a future Greenway.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended to develop with regional-serving retail, employment, service, and civic uses in activity centers or areas designated Community Business by the comprehensive plan. This area is designated as an activity center by PlanCheyenne and has ready access to major transportation routes, including I-25.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposed in concert with this rezoning is a car dealership (outdoor sales). The property should be combined with the property to the east to create one large, commercially developable parcel. The larger parcel should have no issues meeting standards for CB-style development. Should the proposed development not be executed after approval, there are a number of commercial uses which would be eligible to be established at this location. Multifamily residential uses could also be appropriate.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

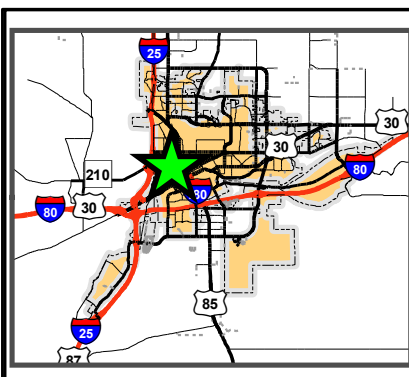
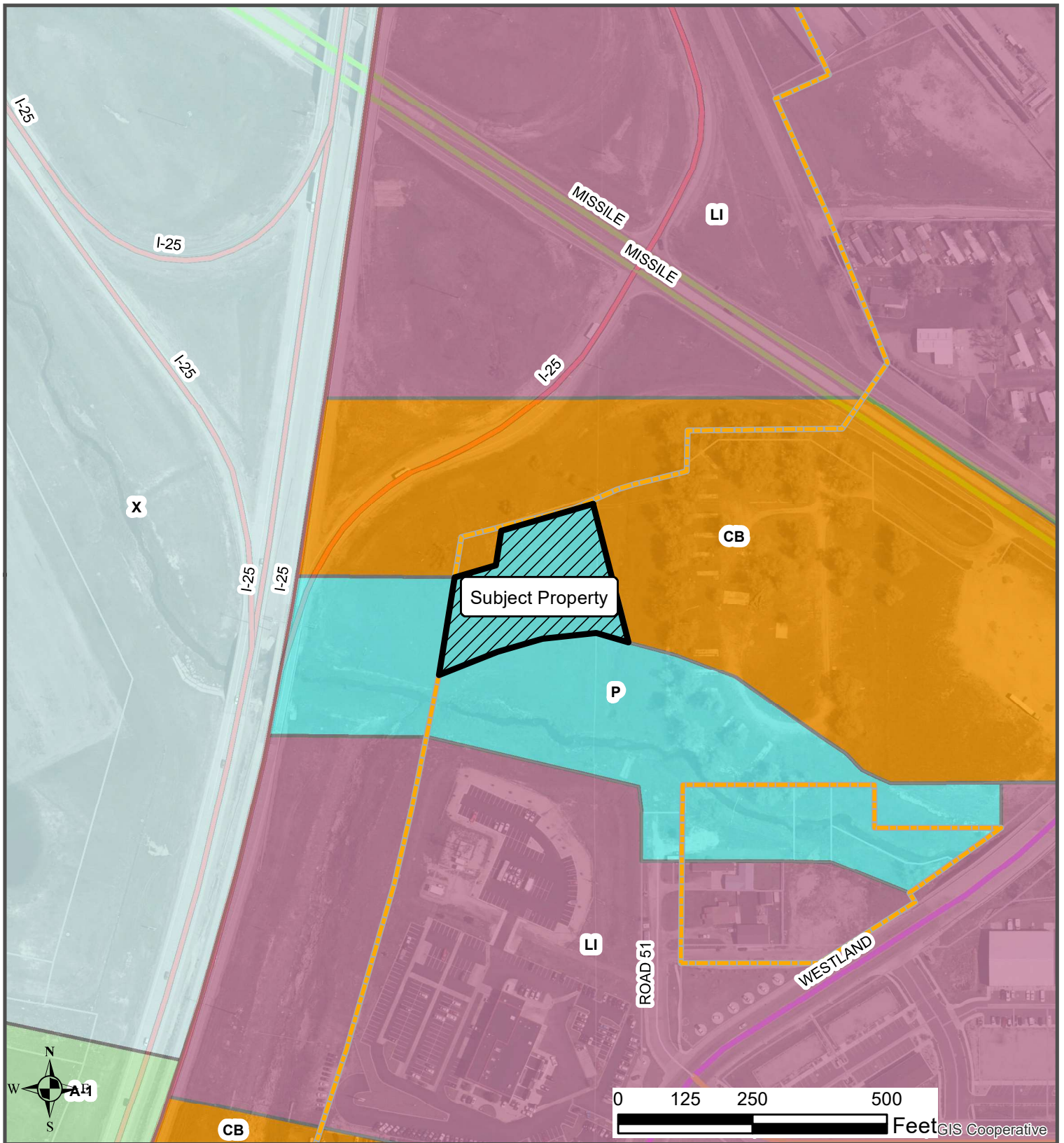
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from P Public to CB Community Business.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map



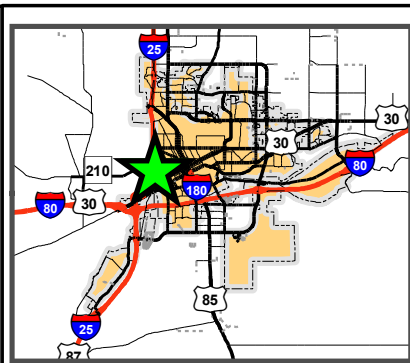
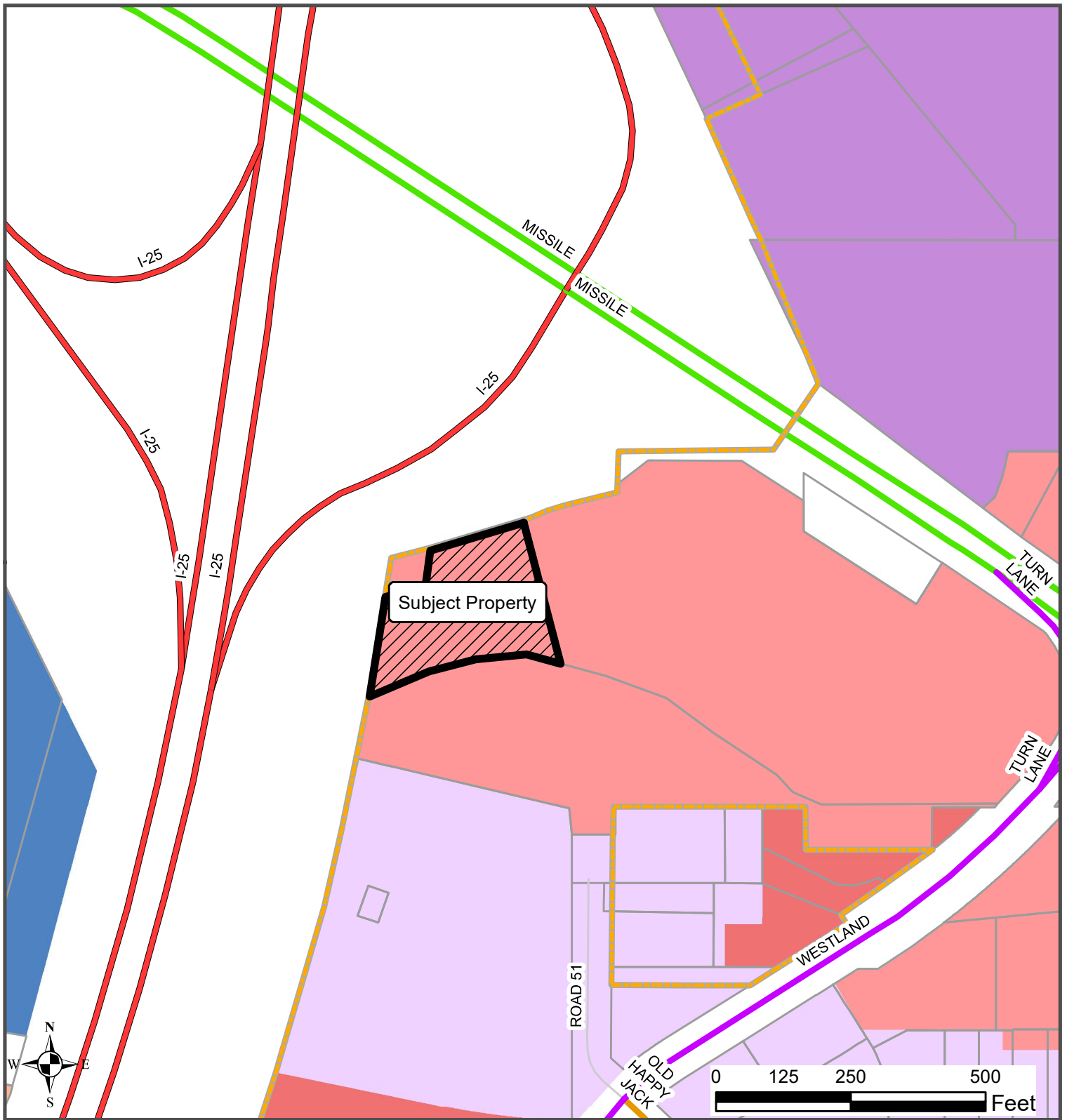
Attachment 1: Zoning Map UDC-22-00354

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt

Feet GIS Cooperative



Attachment 2: Land Use Map UDC-22-00354

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **20 September 2022, 11:09AM**

Receipt number: **39**

Related form version: **10**

General Information

Applicant Name: **GENE MACDONALD**

Applicant Address: **929 Apache St**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307.214.7065**

Applicant Email: **gene@glmdesigngroup.com**

Representative Name: **Shane Hansen**

Representative Address: **1102 west 19th**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076347273**

Representative Email: **shansen@steilsurvey.com**

Owner Name: **Moreland Properties LLC**

Owner Address: **1655 E LAYTON DR**

Owner City:	ENGLEWOOD
Owner State:	CO
Owner Zip Code:	80113
Owner Phone:	307.214.7065
Owner Email:	gene@glmdesigngroup.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization- City of Cheyenne.pdf
Project Location (Street Address or General Location):	MISSILE DR
Assessor's Parcel ID number(s)	14673643100700
Total Project Area	1.46 ACRES
Existing Zoning	P - Public
Requested Zoning	CB - Community Business

Application-Specific Questions

Written Statement	We propose to change the zoning of this parcel to match the zoning of the rest of the parcel being developed by Cowboy Dodge.
Zoning Map	18326A ZC PAPER (1).pdf
Notification Letter	neighbor-notification-letter-template (2).pdf
Supporting Documents / Information	buffer (5).csv

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

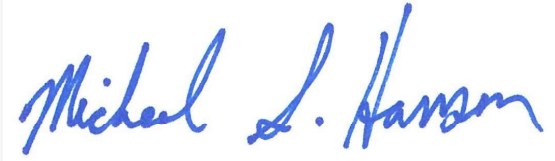
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: SHANE HANSEN

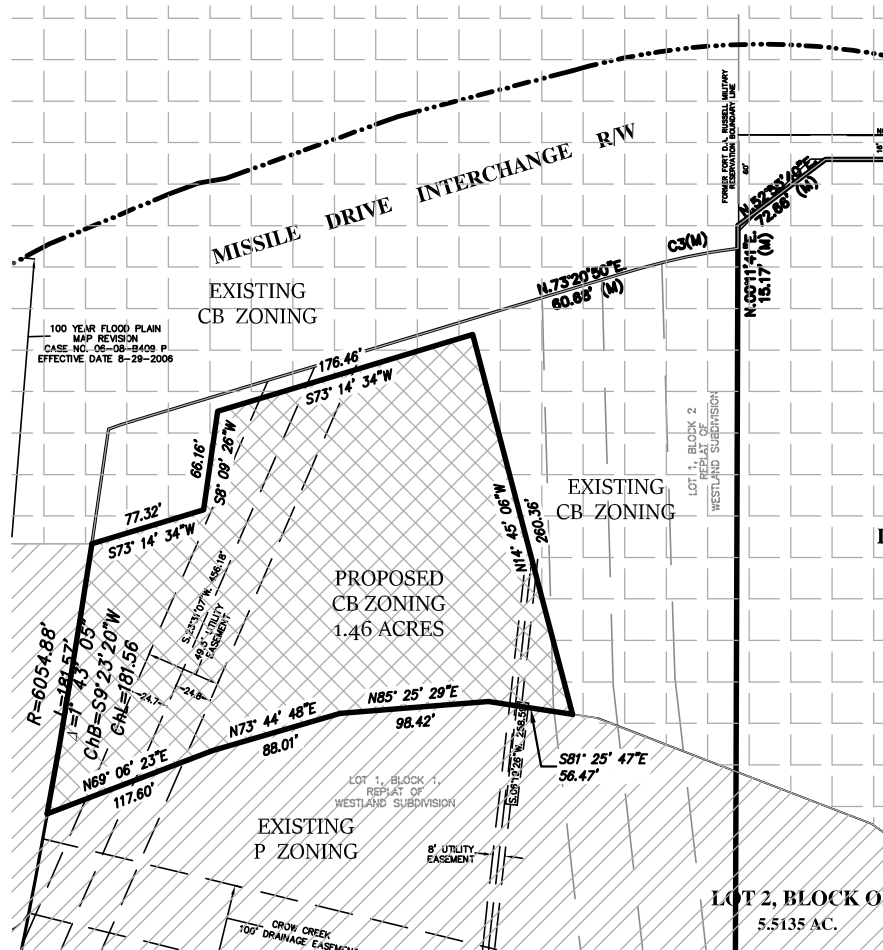
A handwritten signature in blue ink that reads "Michael L. Hansen". The signature is written in a cursive style with a large initial 'M' and a distinct 'L'.

[Uploaded signature image: HANSEN SIGNATURE.jpg](#)

Please enter an email address for an email receipt.

shansen@steilsurvey.com

ZONE CHANGE EXHIBIT

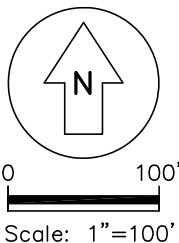


LEGEND

-  PROPOSED ZONING CB
-  EXISTING ZONING CB
-  EXISTING ZONING P

EXISTING ZONING - P
PROPOSED ZONING - CB

Basis of Bearing;
City of Cheyenne Coordinate system.



REVISED: 9/19/2022
18326A ZC.DWG

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ZONE CHANGE EXHIBIT

FOR
LOT 1, BLOCK 1,
PAT GRIFFIN PARK,
2ND FILING,
CITY OF CHEYENNE
LARAMIE COUNTY, WYOMING.

PREPARED: SEPTEMBER 2022



STEIL SURVEYING SERVICES, LLC
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